

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: July 30, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV445271	Nguyen v. Davis et al	Demurrer Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2 LINE 5 LINE 6	24CV454713	Valikhani v. FCA US LLC	Motions to Compel Further Discovery Responses Ctrl Click (or scroll down) on Line 2 for tentative ruling.
LINE 3	23CV409501	De La Rosa v. Doe 1 et al	Motion to Withdraw as Attorney The unopposed motion is GRANTED. The Court will sign the proposed Form MC-053.
LINE 4	23CV425715	Gutierrez v. General Motors LLC et al	Motion for Attorneys' Fees Ctrl Click (or scroll down) on Line 4 for tentative ruling.

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Calendar Line 1

Case Name: *Nguyen v. Davis, et al.*

Case No.: 24CV445271

Defendant Old Republic Title Company (“Old Republic” or “Defendant”) demurs to the Amended Cross-Complaint (“ACC”) filed by Defendants/Cross-Complainants David Davis and Marquette L. Davis (collectively, the “Davises” or “Cross-Complainants”).

I. Background

A. Factual

According to the allegations of the ACC, on September 11, 2022, the Davises entered into a real estate purchase and sale agreement with Defendant My Thao Nguyen the (“Seller”) to purchase the real property located at 15822 Rica Vista Way in San Jose (the “Property”).¹ (ACC, ¶ 12.) The Seller was represented by real estate broker and defendant Zaid Hanna, and the Davises were represented by real estate broker and defendant Erskine Sankey. (*Id.*, ¶¶ 3, 5.) Old Republic was responsible for generating the title insurance policy for the Property while Shelley Kirk, Old Republic’s Vice President, Branch Manager and Escrow Officer, served as the escrow officer supervising escrow for the sale of the Property. (*Id.*, ¶ 2.)

On October 4, 2022, Old Republic generated a second updated preliminary title report for Mr. Hanna (“Title Report”). (ACC, ¶ 16, Exhibit 5.) The report stated that fee ownership was vested in “My Thao Nguyen, a single woman” and that the Seller obtained their interest from “Edward Frye, a married man.” (*Id.*, ¶ 17.) A grant deed recorded on December 10, 2021, confirmed the foregoing. (*Id.*, ¶ 18.) Old Republic issued a title insurance policy to the Davises on October 24, 2022. (*Id.*, ¶ 22, Exhibit 8.) That same day, Old Republic recorded a series of documents, including a quit claim deed wherein Sue Li Nguyen, the Seller’s purported spouse, conveyed all her interests in the Property to the Seller. (*Id.*, ¶ 26.) The Davises allege that it is unclear how Su Li Nguyen gained any interest in the Property that would allow her to release said interest and that several irregularities appeared on the quit claim deed. (*Id.* ¶¶ 26-28.) Old Republic allegedly failed to note the aforementioned irregularities and failed to alert the Davises of any abnormalities relating to the quit claim deed. (*Id.*, ¶ 29.) On October 24, 2022, Old Republic also recorded a grant deed to vest ownership in the Davises, and this document also contained several irregularities that it failed to notice and notify the Davises of. (ACC, ¶ 35.)

In reliance on the closing of the Property, Ms. Davis retired from her job on November 30, 2022, and received, among other benefits from her employer, valuable restricted stock units that she would have continued to accrue had she continued her employment. (ACC, ¶ 38.) The Davises also expended funds in engaging engineers, designers, and contractors to help develop the Property as they desired, in addition to paying property taxes in excess of \$18,000. (*Id.*, ¶¶

¹ In the underlying Complaint, Plaintiff Trang Thuy Nguyen (“Plaintiff”) alleges that she is the victim of a “vacant property scam” in which an alleged fraudster posed as the owner of the Property and sold it to the Davises. Plaintiff maintains that the fraudster did not hold valid title to the Property and could not convey proper title to the Davises.